

Brijesh Yadav v. State of U.P. and Others

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 21 November 2024 · 2024:AHC-LKO:77093-DB · Writ-C No. 7056 of 2022 · **Writ disposed; petitioner to approach Executive Engineer under para 6.5.**

HEADNOTE

A billing dispute is for the Executive Engineer under para 6.5 of the U.P. Electricity Supply Code, 2005. Though that Engineer was not impleaded, the petitioner may approach him; he shall decide within one month, and the impugned demand notice abides by his decision. The writ was disposed on that basis.

FACTUAL SUMMARY

Brijesh Yadav filed Writ-C No. 7056 of 2022 in the Lucknow Bench against the State of Uttar Pradesh through the Electricity Board and two others over a demand notice in a billing dispute. On 30 September 2022 the case was called, no one appeared for the petitioner, and it was listed afresh for the week of 10 October 2022. On 21 November 2024 counsel were heard. The Executive Engineer competent to decide the dispute had not been impleaded.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

billing dispute to Executive Engineer under para 6.5

HOLDING

On a billing dispute the Executive Engineer is the authority competent to decide, and the petitioner may approach him under para 6.5 of the U.P. Electricity Supply Code, 2005 even though he was not impleaded. He shall do the needful with expedition, within one month, and the impugned demand notice shall abide by his decision. The writ petition is disposed of accordingly. ¶ 2-3

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ was disposed without deciding the demand. The petitioner was left to para 6.5, and the impugned notice was made to abide the Executive Engineer's decision. ¶ 2-3

clause-6.5-representation-executive-engineer The court treated the Executive Engineer as the authority for the billing dispute and permitted the petitioner to approach him under para 6.5, to be decided within one month. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE BILLING DISPUTE AND THE IMPUGNED DEMAND NOTICE

Left to the Executive Engineer under para 6.5; the notice abides by his decision. ¶ 2